

24STCV26653 24STCV26653

County: los-angeles

Division: Civil Law and Motion

Department: 311

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Case Number: 24STCV26653 Hearing Date: September 28, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV26653

PATRICIA

BARTLEY vs LAWRENCE A. BROCKMAN, D.M.D., et al.

September

28, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF'S CONSOLIDATED MOTION TO COMPEL FURTHER

RESPONSES FROM DEFENDANT ARTHUR B. SCHLACHTMAN, D.D.S. TO PLAINTIFF'S REQUESTS

FOR PRODUCTION AND SPECIAL INTERROGATORIES, SET ONE, AND REQUEST FOR MONETARY

SANCTIONS.

RULING:

The
Court continues the Motion hearing to October 30, 2026, at 8:30 a.m., in
Department 311.

Plaintiff
and Defendant are ordered to meet and confer in good faith regarding the most
recent responses.

On
or before October 23, 2026, Plaintiff shall serve and file an up-to-date
Separate Statement for any discovery issues remaining unresolved.

Plaintiff
to give notice.

I.
BACKGROUND

On October 11, 2024,
PATRICIA BARTLEY (Plaintiff), a self-represented litigant, filed a Complaint
against LAWRENCE A. BROCKMAN, D.M.D.; ARTHUR B. SCHLACHTMAN DDS; and JOSEPH P.
SABET, DDS, et al. (Defendants).

On July 29, 2026,
Plaintiff filed the Third Amended Complaint (TAC), identifying the following
Causes of Action:

1)
PROFESSIONAL NEGLIGENCE;

2)
PROFESSIONAL NEGLIGENCE;

3)
PROFESSIONAL NEGLIGENCE;

4)

LACK OF INFORMED CONSENT;

5)

NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS;

6)

NEGLIGENT MISREPRESENTATION;

7)

MEDICAL BATTERY; and

8)

NEGLIGENCE (BREACH OF CONFIDENTIALITY).

Plaintiff alleges that

Defendants' collective negligence, involving failed dental procedures and inappropriate medications, caused Plaintiff's bone infections and loss, multiple tooth extractions, pain, and the need for extensive corrective procedures including bone grafting, tooth extractions, crowns and implants.

On August 20, 2026, Plaintiff filed the combined Motion for Order compelling ARTHUR SCHLACHTMAN, D.D.S.'s (Defendant's) further responses to Special Interrogatories and Document Requests. Plaintiff also requests sanctions.

Defendant's Opposition objects various Motion aspects addressed below. Defendant also requests sanctions in the amount of \$1,800.00.

II.

LEGAL STANDARD

Where respondents object or respond inadequately to discovery requests, a motion lies to compel further responses, as to which respondent has the burden to justify the objections. (Fairmont Ins. Co. v. Superior Court (2000) 22 Cal.4th 245, 255; Code Civ. Proc., §§ 2030.300, subd. (a) [motion to compel further responses lies "[o]n receipt of a response to interrogatories...."]; and 2031.310, subd. (a) [motion to compel further responses lies "[o]n receipt of a response to an inspection demand...."].) A

propounding party's remedy when it deems objections in discovery responses to be without merit is to move for an order compelling further responses. (*Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116, 1127.) The burden of justifying any failure to respond to discovery requests remains at all times with the responding party. (E.g., *Williams v. Superior Court* (2017) 3 Cal.5th 531, 541.)

A discovery motion should

not be denied automatically based upon the reason that the moving parties failed to meet and confer in good faith. (*Obregon*

v. Superior Court (1998) 67 Cal.App.4th 424, 434. But see *Townsend v.*

Superior Court (1998) 61 Cal.App.4th 1431, 1439 [motion must be denied where lack of meet and confer].) A failure to meet and confer in good faith,

“may jeopardize the movant's ability to obtain relief for the other side's

alleged misuse of the discovery process.” (*In re Marriage of Moore*

(2024) 102 Cal.App.5th 1275, 1298–1299.) “ ‘A determination of whether an attempt at informal resolution is adequate . . . involves the exercise of discretion.’ ” (*Stewart v. Colonial W.*

Agency (2001) 87 Cal.App.4th 1006, 1016. Accord, *Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1293-1294. See also

Code Civ. Proc., § 2016.040, subd. (a) (“A meet and confer declaration in

support of a motion shall state facts showing a reasonable and good faith

attempt, either in person, by telephone, or by videoconference, to informally

resolve each issue presented by the motion.”.) A decision whether to impose

sanctions for failures to meet and confer has been reviewed on appeal for an abuse of discretion. (*Parker v. Wolters*

Kluwer U. S., Inc. (2007) 149 Cal.App.4th 285, 297; *Leko v. Cornerstone Bldg. Inspection Serv.* (2001) 86 Cal.App.4th 1109, 1124.)

Courts have discretion to

deny discovery motions where a filed separate statement lacks the content and

format required by the California Rules of Court. (*Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, 893. Accord, *St. Mary v. Superior Court* (2014) 223

Cal.App.4th 762, 778.) A discovery separate statement is to address requests,

answers and reasons for compelling, etc. (Cal. Rules of Court, rule 3.1345(c).)

Whether combined motions

are prohibited is unsettled. (See generally Cal. Prac. Guide Civ. Pro. Before

Trial (The Rutter Group 2026) § 9:24.3 [available on Westlaw].) In *San*

Bernardino (not Los Angeles), “[i]f more than one motion is combined with

another, a separate filing fee shall apply to each motion.” (Super. Ct. San

Bernardino County, Local Rules, rule 521.)

Monetary discovery

sanctions are mandatory as to parties losing discovery motions, unless courts find substantial justification or other injustice. (Deck v. Devs. Inv. Co. (2023) 89 Cal.App.5th 808, 830.) “[T]he phrase “substantial justification” has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (Kwan Software Engineering, Inc. v. Hennings (2020) 58 Cal.App.5th 57, 75.) A self-represented litigant cannot obtain sanctions like attorneys’ fees. (Kravitz v. Superior Court (2001) 91 Cal.App.4th 1015, 1020; Argaman v. Ratan (1999) 73 Cal.App.4th 1173, 1175; Musaelian v. Adams (2009) 45 Cal.4th 512, 515.)

III.

ANALYSIS

Plaintiff

requests an Order compelling Defendant to serve complete, verified, code-compliant further responses to Plaintiff’s Special Interrogatories, Set One and Requests for Production of Documents, and to produce all responsive documents and electronically stored information as required.

Defendant

asserts issues with the consolidated motion, the absence of meeting and conferring as to the most recent responses, and Plaintiff’s combined Separate Statement seeking more in responses than described by discovery requests.

The

Court generally concurs with the Opposition points, and will continue the Motion for required meeting and conferring.

Further,

it having reviewed the Separate Statement attached to the back of the Motion, the Court sets forth some applicable law related to areas where each side went wrong, to help guide the parties to an informal resolution.

For

example, Plaintiff frequently advocates responses going far beyond the scope of the discovery requests as worded, and beyond statutory requirements. As another

instance, Defendant often failed to respond in a way required by the California Discovery Act, such as failures to specify whether production would be allowed in full or in part along with specifications of document categories being withheld.

Interrogatory

responses must be (1) the information sought, (2) an exercise of a valid option to produce writings, or (3) an objection. (Hernandez v. Superior Court (2003) 112 Cal.App.4th 285, 293.) An interrogatory response must be as complete and straightforward as reasonably available information permits. (Code Civ. Proc., § 2030.220.) A response must “represent the interrogated party's present best and complete answer.” (Fuss v. Superior Court (1969) 273 Cal.App.2d 807, 816.) If a respondent does not have personal knowledge for a full response, the party shall state that and make a reasonable and good faith effort to obtain the information by inquiries. (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 406; Regency Health Services, Inc. v. Superior Court (1998) 64 Cal.App.4th 1496, 1504.) Where interrogatory responses reveal all information currently available to a party, but the respondent cannot furnish all requested information, then the party should set forth the efforts made to obtain that information. (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 782, superseded by statute on another ground as stated in Guzman v. General Motors Corp. (1984) 154 Cal.App.3d 438, 444.) “A party may not deliberately misconstrue a question for the purpose of supplying an evasive answer. [Citation.] Indeed, where the question is somewhat ambiguous, but the nature of the information sought is apparent, the proper solution is to provide an appropriate response.” (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 783. Accord, Field v. U.S. Bank Nat'l Assn. (2022) 79 Cal.App.5th 703, 708.)

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document response must consist of: 1) An agreement to comply, stating whether the productions or inspection will be allowed “in whole or in part,” and that all documents or things in the possession, custody or control of the respondent, as to which no objection is made, will be included, by the date set for inspection (unless informally extended in writing, or the designated timing is subject to objection); 2) a representation of inability to comply, with a specification of any person believed or known to have possession of documents; or, 3) objections and specification of withheld documents. (Code Civ. Proc., §§ 2031.210, subd. (a), 2031.220, 2031.270, 2031.280.) Compliance includes all documents or things in

the demanded category that are in the “possession, custody, or control” of the responding party, such as from other corporations. (Roche v. Hyde (2020) 51 Cal.App.5th 757, 813 [quoting Code Civ. Proc., § 2031.220].) With regard to document requests, a response expressing an inability to comply shall state that a diligent search and reasonable inquiry was made to locate the items, and the reason for an inability to comply, including that the item never existed, was lost or stolen, was destroyed, or is not in respondent’s possession, along with the identity and address of anyone believed to have the document. (Code Civ. Proc., § 2031.230.) “Even where a party deems a demand to be objectionable, he [she, or it] still must identify those items which fall into the category of item in the demand to which an objection is being made.” (Standon Co. v. Superior Court (1990) 225 Cal.App.3d 898, 901, fn.3.) “Any documents or category of documents produced in response to a demand for inspection, copying, testing, or sampling shall be identified with the specific request number to which the documents respond.” (Code Civ. Proc., § 2031.280, subd. (a).)

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motion to compel compliance as agreed with a request for production of documents is based upon a showing that the respondents failed “to permit an inspection ‘in accordance with that party’s statement of compliance.’ ” (Standon Co. v. Superior Court (1990) 225 Cal.App.3d 898, 903. See also Code Civ. Proc., § 2031.320, subd. (a).) “If the party fails to make a production in accordance with its statement of compliance, the opposing party may file another motion to compel seeking compliance.” (Bd. of Registered Nursing v. Superior Court (2021) 59 Cal.App.5th 1011, 1033 [citing Code Civ. Proc., § 2031.320].)

Ambiguity

objections as to discovery are overruled unless requests are unintelligible. (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 783, superseded by statute on another ground as stated in Guzman v. General Motors Corp. (1984) 154 Cal.App.3d 438, 444. Cf. Standon Co. v. Superior Court (1990) 225 Cal.App.3d 898, 901 [ambiguity objection deemed a nuisance objection as to request for any medical bills or expense documentation]; Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1286 [“the term was, therefore, ambiguous. This contention is preposterous in the circumstances presented.”]; Cembrook v. Superior Court (1961) 56 Cal.2d 423, 430 [“the trial court erred in sustaining its objections to the requests, in toto. Some of the requests are obviously ... void of ambiguity.”].)

As

to overbreadth objections involving no claim of privilege, courts determine whether the discovery is “reasonably calculated to lead to the discovery of admissible evidence”, generally resolving doubt in favor of permitting discovery. (Williams v. Superior Court (2017) 3 Cal.5th 531, 542.) “When discovery requests are grossly overbroad on their face, and hence do not appear reasonably related to a legitimate discovery need, a reasonable inference can be drawn of an intent to harass and improperly burden.” (Obregon v. Superior Court (1998) 67 Cal.App.4th 424, 431.)

“The

rule that each specially prepared interrogatory must be ‘full and complete’ by itself (§ 2030.060, subd. (d)), together with the rule that ‘[n]o specially prepared interrogatory shall contain subparts, or a compound, conjunctive, or disjunctive question’ (§ 2030.060, subd. (f)) ‘prevent evasion of the statutory limit on the number of interrogatories that one party may propound to another.’” (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1287-1288.) How strictly the rule against compound, conjunctive or disjunctive interrogatories will be applied remains to be seen. (Ibid. at p. 1291.)

If

a party objects to discovery requests, and also provides complete responses to the requests, then nothing is left to address in a motion to compel. (American Federation of State, County & Municipal Employees v. Metropolitan Water Dist. (2005) 126 Cal.App.4th 247, 269.)

IV.

CONCLUSION

The Court continues the Motion,
and provides legal guidance for further meeting and conferring.